

Smt.Sohani vs Shambhu Lal on 12 May, 2022

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR
S.B. Criminal Revision Petition No. 814/2013

Smt.Sohani

----Petitioner

Versus

Shambhu Lal

----Respondent

For Petitioner(s) : Ms. Yogita Mohanani
For Respondent(s) : None present

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Order 12/05/2022 The petitioner has preferred this revision petition for the following relief :-

"It is, therefore, prayed that this Hon`ble Court will be pleased to send for the record of the lower court, peruse the same & after perusal set aside the order dismissing the application of the petitioner u/s. 125 Cr. P.C., order for awarding the maintenance etc. to the petitioner or pass any other orders that this Hon`ble Court deems fit & proper."

Despite service, none appears for the respondent.

Counsel for the petitioner has shown para-9 of the impugned order, which reads as follows :-

"i{kdkjksa ds e/; ;g rF; gSa fd izkFkhZ;k vizkFkhZ dh ukrk;r iRuh gSA vizkFkhZ ,u-,-M- 1 Jh 'kEHkwyky us viuh izfrijh{kk esa ;g rF; Lohdkj fd;k gSa fd izkFkhZ;k Jherh lksguh ls mlus ukrk fookg fd;k Fkka iwoZ esa izkFkhZ;k us vizkFkhZ ds fo:)/kkjk&125 nz-iz-la- ds varxZr izkFkZuk&i= izLrqr fd;k Fkka izkFkZuk i= dk fuLrkj.k vkns'k fnukad 04-10-1997 izn'kZ&, 2 ds }kjk gqv k Fkka ml vkns'k esa fo}ku (2 of 6) [CRLR-814/2013] vij eq[; U;kf;d eftLV^asV] ek.Myx< us ;g ekuk Fkk fd izkFkhZ;k Jherh lksguh vizkFkhZ dh 'kknh'kqnk iRuh ugha gS vkSj bl dkj.k izkFkhZ;k vizkFkhZ ls dksbZ Hkj.k&iks"k.k HkRrk izkIr djus dh vf/kdkjh ugha gSA"

Counsel for the petitioner submits that 'nata' marriage is admitted between the parties but at the same time the learned trial court has proceeded declaring the marriage to be illegal, thus, dismissing the application for maintenance under Section 125 Cr. P.C. Counsel for the petitioner has relied upon judgment of Hon`ble Apex Court in Badshah Vs. Sou. Urmila Badshah Godse & Anr., passed on 18.10.2013 in Criminal Miscellaneous Petition No.19530/2013 in Special Leave Petition (Crl.) No.8596/2013; relevant portion whereof reads as follows :-

"10. Before we deal with the aforesaid submission, we would like to refer two more judgments of this Court. First case is known as Dwarika Prasad Satpathy vs. Bidyut Prava Dixit & Anr.[3] In this case it was held:

"The validity of the marriage for the purpose of summary proceeding under s.125 Cr.P.C. is to be determined on the basis of the evidence brought on record by the parties. The standard of proof of marriage in such proceeding is not as strict as is required in a trial of offence under section 494 of the IPC. If the claimant in proceedings under s.125 of the Code succeeds in showing that she and the respondent have lived together as husband and wife, the court can presume that they are legally wedded spouse, and in such a situation, the party who denies the marital status can rebut the presumption. Once it is admitted that the marriage procedure was followed then it is not necessary to further probe into whether the said procedure was complete as per the Hindu Rites in the proceedings under S.125,Cr.P.C. From the evidence which is led if the Magistrate is prima facie satisfied with regard to the performance of marriage in proceedings under S.125, Cr.P.C. which are of summary nature strict proof of performance of essential rites is not required.

It is further held:

It is to be remembered that the order passed in an application under section 125 Cr.P.C. does not finally determine the rights and obligations of the parties and the said section is enacted with a view to provide summary remedy for providing maintenance to a wife, children and (3 of 6) [CRLR-814/2013] parents. For the purpose of getting his rights determined, the appellant has also filed Civil Suit which is spending before the trial court. In such a situation, this Court in S.Sethurathinam Pillai vs. Barbara alias Dolly Sethurathinam, (1971) 3 SCC 923, observed that maintenance under section 488, Cr.P.C. 1898 (similar to Section 125, Cr.P.C.) cannot be denied where there was some evidence on which conclusion for grant of maintenance could be reached. It was held that order passed under Section 488 is a summary order which does not finally determine the rights and obligations of the parties; the decision of the criminal Court that there was a valid marriage between the parties will not operate as decisive in any civil proceeding between the parties."

11. No doubt, it is not a case of second marriage but deals with standard of proof under Section 125, Cr.P.C. by the applicant to prove her marriage with the respondent and was not a case of second marriage. However, at the same time, this reflects the approach which is to be adopted while

considering the cases of maintenance under Section 125,Cr.P.C. which proceedings are in the nature of summary proceedings.

12. Second case which we would like to refer is Chanmuniya vs. Virendra Kumar Singh Kushwaha & Anr.[4] The Court has held that the term "wife" occurring in Section 125, Cr.P.C. is to be given very wide interpretation. This is so stated in the following manner:

"A broad and expansive interpretation should be given to the term "wife" to include even those cases where a man and woman have been living together as husband and wife for reasonably long period of time, and strict proof of marriage should not be a pre- condition for maintenance under Section 125 of the Cr.P.C. so as to fulfill the true spirit and essence of the beneficial provision of maintenance under Section

125."

13. No doubt, in Chanmuniya (supra), the Division Bench of this Court took the view that the matter needs to be considered with respect to Section 125,Cr.P.C., by larger bench and in para 41, three questions are formulated for determination by a larger bench which are as follows:

"1. Whether the living together of a man and woman as husband and wife for a considerable period of time would raise the presumption of a valid marriage between them and whether such a presumption would entitle the woman to maintenance under Section 125,Cr.P.C.?

2. Whether strict proof of marriage is essential for a claim of maintenance under Section 125,Cr.P.C. having regard to the provisions of the Domestic Violence Act, 2005?

3. Whether a marriage performed according to the customary rites and ceremonies, without strictly fulfilling the requisites of Section 7(1) of the Hindu Marriage Act, 1955, or any other personal law would entitle the woman to maintenance under Section 125,Cr.P.C.?"

14. On this basis, it was pleaded before us that this matter be also tagged along with the aforesaid case. However, in the facts of the present case, we do not deem it proper to do so as we find that the view taken by the courts below is perfectly justified. We are dealing with a situation where the marriage between the parties has been proved. However, the petitioner was already married. But he duped the (4 of 6) [CRLR-814/2013] respondent by suppressing the factum of alleged first marriage. On these facts, in our opinion, he cannot be permitted to deny the benefit of maintenance to the respondent, taking advantage of his own wrong. Our reasons for this course of action are stated hereinafter.

15. Firstly, in Chanmuniya case, the parties had been living together for a long time and on that basis question arose as to whether there would be a presumption of marriage between the two because of

the said reason, thus, giving rise to claim of maintenance under Section 125,Cr.P.C. by interpreting the term "wife" widely. The Court has impressed that if man and woman have been living together for a long time even without a valid marriage, as in that case, term of valid marriage entitling such a woman to maintenance should be drawn and a woman in such a case should be entitled to maintain application under Section 125,Cr.P.C. On the other hand, in the present case, respondent No.1 has been able to prove, by cogent and strong evidence, that the petitioner and respondent No.1 had been married each other.

16. Secondly, as already discussed above, when the marriage between respondent No.1 and petitioner was solemnized, the petitioner had kept the respondent No.1 in dark about her first marriage. A false representation was given to respondent No.1 that he was single and was competent to enter into martial tie with respondent No.1. In such circumstances, can the petitioner be allowed to take advantage of his own wrong and turn around to say that respondents are not entitled to maintenance by filing the petition under Section 125,Cr.P.C. as respondent No.1 is not "legally wedded wife" of the petitioner? Our answer is in the negative. We are of the view that at least for the purpose of Section 125 Cr.P.C., respondent No.1 would be treated as the wife of the petitioner, going by the spirit of the two judgments we have reproduced above. For this reason, we are of the opinion that the judgments of this Court in Adhav and Savitaben cases would apply only in those circumstances where a woman married a man with full knowledge of the first subsisting marriage. In such cases, she should know that second marriage with such a person is impermissible and there is an embargo under the Hindu Marriage Act and therefore she has to suffer the consequences thereof. The said judgment would not apply to those cases where a man marries second time by keeping that lady in dark about the first surviving marriage. That is the only way two sets of judgments can be reconciled and harmonized. "

Counsel for the petitioner submits that technically a living spouse will disable a party to enter into a lawful marriage but in the State of Rajasthan there are number of castes which are following the custom of 'nata' marriage, thus, the protection available to a wife ought to be given to the spouse under the 'nata' marriage too.

Counsel for the petitioner also submits that under the Domestic Violence Act, 2005 Legislature has recognized domestic (5 of 6) [CRLR-814/2013] relationship akin to matrimonial relationship' The definition is reproduced as follows :-

Section 2(f), which defines "domestic relationship". The said definition reads as follows :-

(f) "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in shared household, when they are related by consanguinity, marriage, or through a relationship in the nature of marriage, adoption or are family members living together as a joint family.

Counsel for the petitioner submits that, thus, the learned trial court declining to entertain the application under Section 125 Cr. P.C., is contrary to law.

This Court after hearing counsel for the petitioner and perusing the judgment cited in Badshah (supra) as well as the provisions of Domestic Violence Act, which may not have a direct bearing but atleast on the scheme of law that once a customary marriage has been recognized in number of communities and it is an admitted position, then the learned trial court ought to have given her protection under Section 125 Cr. P.C. Further, Hon`ble Apex Court has also held that prolong relationship even without marriage has to be considered as marriage and this is a case where 'nata' marriage is admitted by both the parties.

In view of aforesaid discussion, the impugned order 13.08.2013 passed by learned Judge, Family Court, Bhilwara dismissing the application of the petitioner-wife under Section 125 Cr. P.C., in Criminal (wrongly written as civil) Misc. Case (6 of 6) [CRLR-814/2013] No.2942/2012 is quashed and set aside. The learned trial court is directed to assess income of the husband and pass appropriate orders for maintenance.

(DR.PUSHPENDRA SINGH BHATI), J.

158-Sanjay/-

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